



CHAPTER 1

An Act to empower the Corporation of London to widen London Bridge and to construct other works, to acquire lands compulsorily; and for other purposes.
[1st August, 1962.]

WHEREAS—

(1) The Corporation of London are seised of, or entitled to, certain messuages, lands, tenements and hereditaments in the city of London and in the counties of London, Surrey, Kent and Essex (which are commonly called and are hereinafter referred to as “the Bridge House Estates”) in trust for the maintenance and support of London Bridge, Blackfriars Bridge, Southwark Bridge and the Tower Bridge:

(2) It is expedient to empower the Corporation to carry out the works described in this Act for widening London Bridge and for providing improved facilities for the passage of pedestrians to and from London Bridge Railway Station and over London Bridge, and to defray the expenses of such works out of the rents and profits of the Bridge House Estates:

(3) The objects of this Act cannot be attained without the authority of Parliament:

(4) A plan and sections showing the lines and levels of the works authorised by this Act and showing the lands required, or which may be taken, for the purposes or under the powers of

this Act, and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands, were duly deposited in the office of the Clerk of the Parliaments and in the Private Bill Office, House of Commons, with the clerk of the London County Council and with the town clerk of the city of London and the respective town clerks of the metropolitan boroughs of Bermondsey and Southwark, which plan, sections and book of reference are in this Act referred to respectively as the deposited plan, the deposited sections and the deposited book of reference:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Short title.

1. This Act may be cited as the London Bridge Improvements Act, 1962.

Division of Act into Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Lands.

Part III.—Works.

Part IV.—General.

Interpretation.

3.—(1) In this Act, unless there be something in the subject or context repugnant to such construction—

“boroughs” means the metropolitan boroughs of Bermondsey and Southwark;

“borough” means either of those metropolitan boroughs and “the borough” means that one of those metropolitan boroughs in relation to which the expression is used;

“borough council” means the mayor, aldermen and councillors of a borough and “the borough council” means the mayor, aldermen and councillors of the borough in relation to which the expression is used;

“city” means the city of London;

“Corporation” means the mayor and commonalty and citizens of the city, trustees of the Bridge House Estates;

“county council” means the London County Council;

“elevated footway” means the elevated footway and footbridges (Work No. 3) authorised by this Act;

“enactment” includes an enactment in this Act or in any general or local Act and any order, byelaw, scheme or regulation for the time being in force;

“improvements” means the works authorised by this Act, or any of them, or any part of any of those works;

“Lands Clauses Acts” means the Lands Clauses Acts as modified by the Land Compensation Act, 1961, and by this Act;

“limits of deviation” means the limits of deviation for the improvements shown on the deposited plan;

“Minister” means the Minister of Transport;

“port authority” means the Port of London Authority;

“street” includes a highway, a public bridge and any road, lane, footway, square, court, alley or passage, whether a thoroughfare or not, and notwithstanding the absence of houses;

“town clerk” and “engineer” mean the town clerk and engineer of the city and include any persons duly appointed to discharge temporarily the respective duties of those officers.

(2) Except where the context otherwise requires, any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by, or by virtue of, any subsequent enactment, including this Act.

(3) All distances and lengths stated in any description of works (other than in paragraph (2) of section 43 (For protection of port authority and river users) of this Act) shall be construed as if the words “or thereabouts” were inserted after each such distance and length.

4. The Lands Clauses Acts, except section 92 and sections 127 to 133, 150 and 151 of the Lands Clauses Consolidation Act, 1845 (so far as they are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act: Incorporation
of Acts.

Provided that the bond required by section 85 of the Lands Clauses Consolidation Act, 1845, shall be sufficient without the addition of the sureties mentioned in that section.

PART II

LANDS

5.—(1) Subject to the provisions of this Act, the Corporation Power to may enter upon, take and use such of the lands in the city and acquire lands.

PART II
—cont.

the boroughs as are delineated on the deposited plan and described in the deposited book of reference (except the lands thereon numbered 5 in the city) and as may be required for the purpose of the improvements and the improvement and development of frontages and lands abutting on, or adjacent to, any street (including the provision of space for the erection of houses and buildings adjoining or near to the improvements) and for the purpose of recoupment, reinstatement or exchange and for other purposes of this Act, or for any of the aforesaid purposes.

(2) The powers of the Corporation for the compulsory purchase of land under this section shall cease after the thirty-first day of December, nineteen hundred and sixty-five.

Correction of
errors in
deposited
plan and
book of
reference.

6.—(1) If the deposited plan or the deposited book of reference are inaccurate in their description of any land, or in their statement or description of the ownership or occupation of any land, the Corporation, after giving not less than ten days' notice to the owner, lessee and occupier of the land in question, may apply to a magistrates' court having jurisdiction in the place where the land is situated for the correction thereof.

(2) If on any such application it appears to the court that the misstatement or wrong description arose from mistake, they shall certify the fact accordingly and shall in their certificate state in what respect any matter is misstated or wrongly described.

(3) The certificate shall be deposited in the office of the Clerk of the Parliaments and copies thereof in the Private Bill Office, House of Commons and with the clerk of the county council, the town clerk and the respective town clerks of the boroughs, with whom a copy of the deposited plan (or of so much thereof as includes the land to which the certificate relates) has been deposited in accordance with the Standing Orders of the Houses of Parliament, or who has the custody of any such copy so deposited, and thereupon the deposited plan and the deposited book of reference shall be deemed to be corrected according to the certificate, and it shall be lawful for the Corporation to take the land and execute the improvements in accordance with the certificate.

(4) A person with whom a copy of a certificate is deposited under this section shall keep it with the other documents to which it relates.

(5) In the case of any application under this section to the lord mayor or an alderman sitting at either of the justice rooms of the city, the place of the lord mayor or alderman shall be taken by the assistant judge, or any additional judge, of the Mayor's and City of London Court.

7. The Corporation may—

PART II
—cont.

- (a) for the purposes of constructing or maintaining the widening of London Bridge (Work No. 1) authorised by this Act, use so much of the bed, banks and foreshore of the river Thames as may be required for such purposes and as lies within the limits of deviation; and
- (b) for the purposes of executing and placing temporary works and conveniences in connection with the said work, occupy and use temporarily so much of the said bed, banks and foreshore as may be required for those purposes and as lies within the limits of deviation.

Use of river
bed, etc.,
for bridge
widening.

8. The Corporation may enter upon, take, use and appropriate so much of the subsoil and under-surface of any public street within the limits of deviation as shall be necessary for the purposes of the improvements without being required to purchase the same, or any easement therein or thereunder, or to make any payment therefor.

Power to use
subsoil of
streets.

9.—(1) The Corporation may, instead of acquiring any land which they are authorised to acquire compulsorily under this Act, acquire compulsorily such easements and rights in or over the land as they may require for the purpose of constructing, using, maintaining, renewing or removing the improvements, or of doing any other thing necessary in connection with the improvements.

Power to
acquire
easements
only.

(2) Accordingly the Corporation may give notice to treat in respect of any such easements or rights describing the nature thereof and the provisions of the Lands Clauses Acts shall apply in relation to the acquisition of such easements or rights as if they were lands within the meaning of those Acts.

(3) Where the Corporation have acquired an easement or right only over or in any land under this section—

- (a) they shall not be required, or (except by agreement or during the execution of the improvements) entitled, to fence off or sever that land from the adjoining land;
- (b) the owner or occupier of the land for the time being shall, subject to the easement or right, have the same right to use the land as if this Act had not been passed.

10.—(1) Any person empowered by the Lands Clauses Acts to sell and convey or release lands may, if he thinks fit, subject to the provisions of those Acts, grant to the Corporation any easement or right required for the purposes of this Act in, over or affecting any such lands (not being an easement or right of water in which some person other than the grantor has an interest).

Grant of
easements
by persons
under
disability.

(2) The provisions of the said Acts with respect to lands and rentcharges so far as they are applicable shall extend and apply to any such grant and to any such easement or right as aforesaid.

PART II
—cont.Acquisition
of part only
of certain
properties.

11.—(1) No person shall be required under this Act to sell a part only of any house, building or factory if he is willing and able to sell the whole of the house, building or factory, unless the tribunal by whom the compensation is to be assessed determines that such part as is proposed to be taken can be taken without material detriment to the house, building or factory.

(2) If the tribunal determines as aforesaid, compensation shall be awarded in respect of any loss due to the severance of the part proposed to be taken in addition to the value of that part and thereupon the person interested shall be required to sell to the Corporation that part of the house, building or factory.

Power to
expedite
entry.

12. At any time after serving a notice to treat in respect of any land which may be acquired compulsorily under this Act, or in respect of any easement or right in or over any such land, but not less than three months after giving the owner and occupier of the land notice of their intention to exercise the powers of this section, the Corporation may enter on and take possession of the land, or such part thereof as is specified in the last-mentioned notice, or enter on the land in respect of which the easement or right is to be acquired (as the case may be), without previous consent and without compliance with sections 84 to 90 of the Lands Clauses Consolidation Act, 1845:

Provided that the Corporation shall pay the like compensation for land of which possession is taken under this section, or for the easement or right acquired, and the like interest on the compensation awarded as would have been payable if the provisions of those sections had been complied with.

Power to
enter for
survey or
valuation.

13. Any person acting on behalf of the Corporation and duly authorised in that behalf may, on producing if required some duly authenticated document showing his authority, at all reasonable times enter on any land which the Corporation are authorised by this Act to acquire compulsorily for the purpose of surveying or valuing the land:

Provided that no land shall be entered under this section unless the Corporation, not less than seven days before the date of the first entry and not less than twenty-four hours before any subsequent entry, have given notice to the owner and occupier of the land in manner provided by section 9 (Service of notices by Corporation) of the City of London (Various Powers) Act, 1954.

Disregard of
recent
improvements
and interests.

14. In determining any question of disputed compensation or purchase money in respect of land or easements or rights in or over land acquired under this Act, the tribunal by whom the compensation is to be assessed shall not take into account—

- (a) any improvement or alteration made, or building erected, after the fifth day of December, nineteen hundred and sixty-one; or

(b) any interest in the land created after the said date;
which in the opinion of the tribunal was not reasonably necessary
and was made, erected or created with a view to obtaining or
increasing the compensation or purchase money.

PART II
—cont.

15.—(1) All private rights of way over any land which may be
acquired compulsorily under this Act shall, as from the acquisition
of the land, whether compulsorily or by agreement, be extinguished.

Extinction of
private rights
of way.

(2) Any person who suffers loss by the extinguishment of any
right under this section shall be entitled to be paid by the Corpora-
tion compensation to be determined in case of dispute under, and
in accordance with, the Land Compensation Act, 1961.

16. The power of the Corporation of purchasing land by
agreement shall include power to purchase land by agreement
for the purpose of providing substituted sites, buildings or
facilities for the owners and occupiers of land which may be
acquired under any enactment.

Provision of
substituted
sites.

17.—(1) The Corporation may enter into and carry into
effect an agreement or arrangement with the owner or occupier
of any land acquired under this Act with respect to his
reinstatement elsewhere.

Power to
reinstate
owner or
occupiers of
property.

(2) Any such agreement may provide for the exchange of
land and for that purpose the Corporation may pay or receive
money for equality of exchange.

18.—(1) The Corporation may enter into and carry into effect
agreements with any person, being the owner of, or interested in,
any land abutting on the improvements or on any portion of
the lands which may be acquired under this Act, with respect to
the sale by the Corporation to him of any land not required for
the purposes of the improvements.

Agreements
with
adjoining
owners.

(2) The Corporation may accept, as satisfaction of the whole
or any part of the consideration for any such sale, the grant by
the purchaser of any land required by the Corporation for the
purposes of this Act, or any easement or right so required.

PART III WORKS

19. Subject to the provisions of this Act, the Corporation may,
within the city and the boroughs, make and maintain in the lines
or situations shown on the deposited plan and according to the
levels shown on the deposited sections the works referred to
in this section hereafter described, together with all necessary
and proper works and conveniences connected therewith or
incidental thereto:—

Power to
construct
works.

Work No. 1 A widening of London Bridge on the west
side thereof co-extensive as to the points of commence-
ment and termination thereof with London Bridge;

PART III
—cont.

Work No. 2 A widening of Borough High Street on the west side thereof, including a widening over Montague Close and Tooley Street of the bridge carrying Borough High Street over Tooley Street, commencing at the southern end of London Bridge and terminating at a point thirty-seven yards southward of the point of commencement;

Work No. 3 An elevated footway, including a footbridge over Tooley Street and a footbridge over Duke Street Hill, commencing at a point sixty-five yards northward from the junction of Duke Street Hill with Borough High Street and terminating on the boundary of the property of the British Transport Commission adjoining Duke Street Hill at a point one hundred and eight yards eastward from the said junction of Duke Street Hill with Borough High Street.

Limits of
deviation.

20. In the construction of the improvements the Corporation may deviate laterally from the lines or situations thereof, as shown on the deposited plan, to any extent not exceeding the limits of deviation, and from the levels thereof, as shown on the deposited sections, to any extent upwards or downwards:

Provided that in the construction of the widening of London Bridge (Work No. 1) the Corporation shall not reduce the height above ordnance datum of any part of the soffit of any of the arches of the bridge as now existing.

Period for
completion of
Works
Nos. 1 and 2.

21. If the widening of London Bridge (Work No. 1) and the widening of Borough High Street (Work No. 2) authorised by this Act are not completed within ten years from the first day of October, nineteen hundred and sixty-two, then, on the expiration of that period, the powers granted by this Act to the Corporation for making those works, or otherwise in relation thereto, shall cease, except as to so much thereof as is then completed:

Provided that, subject to the provisions of this Act, the Corporation may after the completion of either of the said works reconstruct or renew the same as and when occasion may require.

General
power to
make
subsidiary
works.

22.—(1) Subject to the provisions of this Act, within the limits of deviation, the Corporation, for the purposes of, or in connection with, the improvements (in addition to the works described or referred to in any other provision of this Act), may execute or do any of the following works or things (that is to say):—

- (a) make junctions and communications (including the provision of steps and ramps for the use of persons on foot) with any existing street (whether or not dedicated

to public use or maintainable at public expense) intersected, or interfered with, by, or contiguous to, the improvements, and divert, widen or alter the line, or alter the level, of any such existing street;

- (b) stop up any part of any existing street which may be rendered unnecessary by reason of the exercise of the powers of this Act;
- (c) construct embankments or retaining walls for supporting the improvements;
- (d) construct and provide carriageways, footways, vaults, cellars, arches, sewers, drains, subways, sunken or other ornamental gardens, and other works and conveniences;
- (e) remove, alter, divert, stop up or interfere with any drain, sewer or watercourse, or any pipe, wire or apparatus, provided that the Corporation shall provide a proper substitute before interrupting the flow of sewage in any drain or sewer, or of water in any watercourse;
- (f) raise or sink, or otherwise alter the position of, any steps, areas, cellars, cellar-flaps, pavement lights, gratings, boundary walls, railings, fencings, windows, sewers, drains, watercourses, pipes, spouts or wires belonging to any house or building and remove all other obstructions, provided that the Corporation shall, in so doing, cause as little detriment and inconvenience to persons as the circumstances will admit, and shall make reasonable compensation to any person who suffers damage by reason of the carrying out of any such alterations, such compensation to be determined in case of dispute under, and in accordance with, the Land Compensation Act, 1961;
- (g) execute any works and do any things necessary for the protection of any adjoining land or buildings;
- (h) provide alternative means of access to premises the existing access to which may be stopped up, or interfered with, by, or as a result of, the execution of the improvements.

(2) The Corporation may, on any lands abutting on the improvements and outside the limits of deviation, execute or do, by agreement with the owners and occupiers of the said lands, any of the works or things referred to in paragraphs (f), (g) and (h) of subsection (1) of this section and any other works necessary or convenient for the purpose of preserving the amenities of the said lands.

(3) Any sewers, drains and works (hereafter in this subsection called "apparatus") rendered unnecessary by the substitution of other apparatus therefor shall vest in the Corporation

PART III
—cont.

and the substituted apparatus shall be under the same jurisdiction, care, management and direction as the existing apparatus for which it is substituted.

Power to
make
subsidiary
works
affecting
bridges.

23.—(1) For the purposes of, or in connection with, the widening of London Bridge (Work No. 1) authorised by this Act and the widening of the bridge carrying Borough High Street over Tooley Street (part of Work No. 2) authorised by this Act, the Corporation may throw all or parts of the existing footways of the said bridges and of the approaches thereto within the limits of deviation into the respective carriageways thereof, alter the existing carriageways, footways and structures of the said bridges, and remove or alter the sidewalks, parapets and recesses of London Bridge.

(2) (a) During the construction of the widening of London Bridge (Work No. 1) authorised by this Act the Corporation may temporarily alter, close or stop up the stairs, or any part thereof, leading from the river Thames to London Bridge on each side of the bridge at each end thereof.

(b) After the completion of the said work the Corporation may permanently close or stop up the stairs, or any part thereof, leading from the river Thames to London Bridge on the west side of the bridge at each end thereof without constructing other stairs in substitution therefor.

Power to
make
subsidiary
works in
river Thames.

24.—(1) Within the limits of deviation the Corporation may, for the purposes of, or in connection with, the construction, maintenance, repair or renewal of the widening of London Bridge (Work No. 1) authorised by this Act, alter, or interfere with, the bed, banks and foreshore of the river Thames, and construct, place, maintain, alter and remove caissons, cofferdams, piles, fenders, booms, dolphins, embankments, aprons, abutments, piers, landing stages, staging, pontoons, wharves, walls, fences, drains, stairs, footbridges, buildings, and all such other works and conveniences as they may deem expedient or necessary in the said river, and may, for the purposes of this Act and, subject to the provisions of section 43 (For protection of port authority and river users) of this Act, close temporarily any of the arches of London Bridge, or part of any of those arches.

(2) The Corporation may with the consent of the port authority (such consent not to be unreasonably withheld) and subject to such reasonable conditions as the said authority may specify, for the purposes of, or in connection with, the construction, maintenance, repair or renewal of the widening of London Bridge (Work No. 1) authorised by this Act, moor or anchor temporarily, or cause to be moored or anchored temporarily, vessels, barges, lighters or other craft in the river Thames.

(3) Any difference arising between the Corporation and the port authority under this section shall be settled by arbitration as if it were a difference arising under the said section 43 of this Act.

PART III
—cont.

25. Subject to the provisions of this Act, the Corporation may, for the purposes of, or in connection with, the improvements, and within the limits of deviation, construct and execute all such bridges, arches, piers, viaducts, embankments, aprons, tunnels, abutments, wing walls and other works as they may deem necessary or expedient for carrying the improvements over or under any railway, or any land held or used in connection with any railway, and may, for the purposes of, and during the execution of, the improvements, over or under any railway or any such land, erect, place or execute and maintain upon, over or under the railway all such temporary structures, erections, works, apparatus and appliances as may be necessary or convenient.

Power to make
subsidiary
works affecting
railways.

26. Subject to the provisions of this Act, the Corporation may cause to be removed or filled up all such sewers, drains, docks or watercourses, or parts thereof, within the limits of deviation as shall be in or under any of the lands which may be acquired under this Act and as shall become unnecessary by reason of the purchase thereof or of the property entitled to the use thereof.

Sewers, etc.,
to be removed
or filled up.

27.—(1) Subject to the provisions of this Act, the Corporation may pump any water found by them in the construction of the improvements, and may use for the discharge of any such water the river Thames or any available stream or watercourse or any sewer or drain and for that purpose may, within the limits of deviation, lay down, take up and alter conduits, pipes and other works and make any convenient connections with the river Thames or any such stream, watercourse, sewer or drain:

Power to
pump water
and use
sewers, etc.,
for removing
water.

Provided that—

(a) the Corporation shall not under the powers of this section discharge any water into any sewer or drain vested in, or under the control of, the county council or a borough council except with the consent of the council concerned and subject to such terms and conditions (including the taking of steps to remove, so far as may be reasonably practicable, from water so discharged any gravel, soil or other solid substance or matter in suspension) as that council may reasonably impose; and

(b) the Corporation shall not under the powers of this section make any opening into any such sewer or drain save in accordance with plans reasonably approved by and under the superintendence (if given) of the council concerned.

PART III
—cont.

(2) Any difference arising between the Corporation and a borough council under this section shall be settled by arbitration.

Underpinning
of buildings.

28. If in the execution and maintenance of the improvements it becomes necessary to underpin or otherwise strengthen any house, building or structure (including vaults under any house, building or structure or under any highway) within one hundred feet of any of the improvements in order to avoid damage to such house, building or structure, the Corporation at their own cost and charges may, subject as hereinafter provided, underpin or otherwise strengthen the same and the following provisions shall have effect:—

- (1) At least fourteen days' notice shall, except in case of emergency, be given in manner provided by section 9 (Service of notices by Corporation) of the City of London (Various Powers) Act, 1954, to the owners, lessees and occupiers of the house, building or structure intended to be so underpinned or otherwise strengthened:
- (2) If any owner, lessee or occupier of any such house, building or structure within seven days after the giving of such notice gives a counter-notice in writing that he disputes the necessity of such underpinning or strengthening the question of the necessity shall be settled by arbitration:
- (3) The arbitrator shall forthwith, upon the application of either party, proceed to inspect the house, building or structure, and determine the matter referred to him and, in the event of his deciding that such underpinning or strengthening is necessary, he may prescribe the mode in which the same shall be executed:
- (4) The Corporation shall be liable to compensate the owners, lessees and occupiers of every such house, building or structure in respect of any loss suffered by them by reason of any damage to the house, building or structure, or otherwise arising from the exercise of the powers of this section, if the claim for compensation in respect thereof is made within three months from the discovery of such damage or loss:
- (5) In any case in which any house, building or structure has been underpinned or strengthened under the powers of this section, the Corporation may, from time to time, after the completion of the underpinning or strengthening and during the execution of the work in connection with which the underpinning or strengthening was done, or within twelve months after the completion of that work, enter upon and survey the house, building or structure and do such further underpinning or strengthening

thereof as they may deem necessary or expedient or, as in the case of dispute between the Corporation on the one hand and the owner, lessee or occupier of the house, building or structure on the other hand, shall be settled by arbitration:

- (6) If in any case in which any house, building or structure has been underpinned or strengthened under the powers of this section, the underpinning or strengthening done by the Corporation, at any time within twelve months from the completion of the work in connection with which the underpinning or strengthening was done, proves inadequate for the support or protection of the house, building or structure against further damage arising from the execution of that work, the Corporation shall make compensation to the owner, lessee and occupier of the house, building or structure in respect of any loss suffered by them by reason of such damage if the claim for compensation in respect thereof is made within one month from the discovery of such damage or loss:
- (7) Nothing in this section, nor any dealing with any property in pursuance of this section, shall relieve the Corporation from the liability to compensate under section 68 of the Lands Clauses Consolidation Act, 1845, or under any other enactment:
- (8) Every case of compensation to be ascertained under this section shall be ascertained according to the provisions of the Lands Clauses Acts.

29. There shall be, by virtue of this Act, vested in the Corporation—

Vesting and
disposal of
materials.

(a) all lamp-posts, paving, metalling and other materials in, over or under any street, or part of a street, stopped up, altered or diverted under the powers of this Act; and

(b) all materials obtained in the alteration of, or interference with, any street, sewer or drain in connection with the improvements;

and the Corporation may appropriate and use or sell or dispose of the same or any of them:

Provided that the Corporation shall not under the powers of this section sell or dispose of any matter or thing if any person other than the Corporation proves to the reasonable satisfaction of the Corporation that he is, or would but for the provisions of this section be, the owner thereof.

30.—(1) Subject to the provisions of this Act, the Corporation may, for the purposes and during the construction of the improvements, stop up, open, break up and interfere with, alter or divert

Power to
stop up
ways
temporarily

PART III
—cont.

temporarily all, or any part of, the carrageway or footway of any street, or part of a street, within the limits of deviation, and may execute and do all necessary works and things for, or in connection with, such stopping up, opening, breaking up, interference, alteration or diversion and for keeping such carriageway or footway open for traffic, and may remove or alter any monuments, drinking fountains, lamp-posts, street refuges, posts and other erections within the limits of deviation.

(2) The Corporation shall provide reasonable access for all persons bona fide going to, or returning from, any premises in any street of which the carriageway or footway is stopped up, interfered with, altered or diverted under the powers of this section.

Lights on
temporary
works.

31.—(1) The Corporation shall, at or near any part of any temporary work placed or erected by them in the river Thames below the level of mean high-water spring tides, exhibit and keep burning every night from sunset to sunrise such lights, and take such other steps for the prevention of danger to navigation, as the port authority may from time to time require or approve.

(2) If the Corporation fail to comply in any respect with the provisions of this section they shall be liable on summary conviction to a fine not exceeding twenty pounds and, in the case of a continuing offence, to an additional fine not exceeding two pounds for every day on which, after conviction thereof, they so fail.

Abatement of
works
abandoned or
decayed.

32. If any work constructed by the Corporation under the powers of this Act is abandoned or suffered to fall into decay and is either wholly or partially in the river Thames below the level of mean high-water spring tides or in such other position that it is, or is likely to become, a danger to, or interference with, navigation or other public rights in the said river, the port authority may by notice in writing require the Corporation at their own expense either to repair and restore the work or (if the work is no longer required by the Corporation) to abate or remove the same and restore the site thereof to its former condition and if, during the period of thirty days from the date on which such notice is served on the Corporation, they have failed to take steps to comply with such notice, the port authority may abate and remove the work or any part of it and restore the site thereof to its former condition and the port authority may recover from the Corporation the expense of so doing.

Damage to
or destruction
of works.

33.—(1) If any works constructed by the Corporation under the powers of this Act in the river Thames below the level of mean high-water spring tides are damaged or destroyed, the Corporation shall lay down such buoys, exhibit such lights, or take such other

means for preventing danger to navigation as shall from time to time be directed by the port authority and shall apply to the port authority for directions as to the means to be taken.

PART III
—cont.

(2) If the Corporation fail to comply in any respect with the provisions of this section they shall be liable on summary conviction to a fine not exceeding ten pounds and, in the case of a continuing offence, to an additional fine not exceeding one pound for every day on which, after conviction thereof, they so fail.

PART IV

GENERAL

34.—(1) For the purpose of facilitating the movement of vehicular or pedestrian traffic over London Bridge and along the approaches thereto and the elevated footway, or the safety of the public or otherwise, the Minister, on the application of the Corporation, may from time to time authorise the Corporation at, or in the vicinity of, the junction of any street with the said bridge, approaches or footway to erect or remove barriers for the prevention or limitation of access by vehicular or pedestrian traffic to or from the said bridge, approaches or footway from or to any such street, or notices prohibiting or limiting such access.

Power to prevent access to or from streets.

(2) The Corporation shall give such public notice of the making of an application under subsection (1) of this section as the Minister may direct and, not less than twenty-eight days before making any such application relating to any street outside the city, the Corporation shall give to the county council notice of their intention to make such application.

(3) Any person who, without lawful authority or excuse, removes or interferes with any such barrier or removes, defaces or fails to comply with any such notice shall be liable on summary conviction to a fine not exceeding five pounds.

35. All enactments, grants, assurances, deeds and instruments, and all maps referred to therein, in anywise referring to, or relating to, or showing, London Bridge shall, so far as the same are not inconsistent with the provisions of this Act, be deemed and construed to refer and relate to, or to show, London Bridge as widened under the powers of this Act.

References to London Bridge to include widened bridge.

36. The Corporation may apply the rents and profits of the Bridge House Estates (after making provision for the payments required to be made out of such rents and profits in respect of existing liabilities) in payment of expenses incurred by the Corporation in the execution of the improvements or otherwise in pursuance of this Act.

Application of rents and profits of Bridge House Estates.

PART IV
—cont.

As to repair
of widened
road, etc.

37.—(1) The widening of Borough High Street and the widening of the bridge carrying that street over Tooley Street (Work No. 2) authorised by this Act shall, when completed to the reasonable satisfaction of the person liable to maintain the said street or bridge (as the case may be), be maintained by and at the expense of such person.

(2) Any difference arising between the Corporation and the person liable to maintain the said street or bridge under this section shall be settled by arbitration.

As to
maintenance,
cleansing,
lighting and
policing of
elevated
footway and
approaches.

38. The elevated footway shall be vested in the Corporation and shall be maintained, repaired, cleansed, lighted and policed by the Corporation, and the Corporation shall, if required by the borough council of the borough in which the same are situated, also undertake the maintenance, repair, cleansing, lighting and policing, wholly or in part, of the approaches, or of some of the approaches, to the elevated footway or of any part or parts thereof respectively.

Notice to
commissioner
of police.

39.—(1) Before commencing the construction of the street and bridge widening (Work No. 2) or the elevated footway so as to involve the temporary closing to vehicular traffic of one-third or more of the width of the carriageway of any street within the boroughs, the Corporation shall give not less than twenty-one days' notice in writing to the commissioner of police of the metropolis of their intention so to do, and such notice shall specify the improvements to which the notice relates and the streets which will be closed in the course of the construction of those improvements.

(2) The Corporation shall make such arrangements with the said commissioner as shall be reasonably necessary so as to cause as little interference with vehicular traffic as may be reasonably practicable during the construction of the improvements.

For protection
of
metropolitan
borough
councils of
Bermondsey
and
Southwark.

40. For the protection of the borough councils of Bermondsey and Southwark the following provisions shall, unless otherwise agreed in writing between the Corporation and the borough council concerned, apply and have effect:—

(1) In this section, unless the subject or context otherwise requires, "authorised works" means, in relation to each of the borough councils, so much of the street and bridge widening (Work No. 2) and the footbridges over Tooley Street and Duke Street Hill (part of Work No. 3) authorised by this Act and of any subsidiary works constructed for the purposes of, or in connection with, those improvements as will be carried out in the borough of the borough council:

- (2) Before the construction of any part of the authorised works in a borough is commenced, or the powers of section 30 (Power to stop up ways temporarily) of this Act are exercised in relation to the carriageway or footway of any street, or any part of a street, in the borough, the engineer shall consult the surveyor to the borough council as to the time when such part of the authorised works shall be commenced, the period during which the construction of that part shall be carried out, the extent of the surface of the highway which may be occupied by the Corporation for the purpose of the construction of that part and the manner in which such part shall be constructed, or as to the manner in which and the conditions under which the powers of the said section 30 shall be exercised (as the case may be), with a view to ensuring the safety of the public and of reducing, so far as possible, inconvenience to the public:
- (3) (a) Before commencing the construction of any part of the authorised works which may be situated in, on, under or over any street repairable by a borough council, the Corporation shall submit for the reasonable approval of the borough council plans, sections and particulars thereof including particulars as to the extent of the street affected thereby and as to the period during which construction thereof will proceed;
- (b) If, within forty-two days after the submission of such plans, sections and particulars, the borough council do not signify to the Corporation in writing their approval or disapproval thereof, they shall be deemed to have approved the same;
- (c) No part of the authorised works which may be situated in, on, under or over any street repairable by a borough council shall be constructed otherwise than in accordance with the plans, sections and particulars as aforesaid approved by the borough council or settled by arbitration:
- (4) The Corporation shall not in the exercise of the powers of this Act remove, alter, stop up or interfere with any drains or sewers belonging to a borough council without the consent of the borough council, which consent shall not be unreasonably withheld, and any street (including any arch foundations thereof) vested in a borough council or any sewers, drains, guard rails, monuments, fountains, street refuges, posts, lamp-posts, or any apparatus connected therewith, belonging to a borough council which may be occupied, or (as the case may be) removed, altered or interfered with, by the Corporation for the purposes of, or in connection with, the construction or

PART IV
—cont.

maintenance of the authorised works shall be reinstated, or (as the case may be) shall, unless a substitute is provided therefor to the reasonable satisfaction of the borough council, be replaced, repaired or restored by or at the cost of the Corporation in such manner as shall be reasonably required by the borough council and such substituted apparatus shall vest in the borough council:

- (5) The Corporation shall make compensation to a borough council for any subsidence of, or damage to, any street (including any arch foundations thereof or vaults thereunder) vested in them or any property of the borough council which may be caused by, or in consequence of, the construction or maintenance of the authorised works, or any act or default of the Corporation, their servants, agents or contractors, and the Corporation shall effectively indemnify and hold harmless the borough council from and against all actions, costs, claims and demands whatsoever arising out of, or in connection with, the construction of the authorised works:

Provided that the borough council shall give to the Corporation reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Corporation:

- (6) Any difference arising between the Corporation and a borough council under this section (other than a difference as to the meaning or construction of this section) shall be settled by arbitration.

For
protection of
Proprietors of
Hay's Wharf
Limited and
Hay's Wharf
Limited.

41. For the protection of the Proprietors of Hay's Wharf Limited (in this section referred to as "the proprietors") and Hay's Wharf Limited (in this section referred to as "the wharf company") the following provisions shall, unless otherwise agreed in writing between the Corporation and the proprietors or the wharf company, apply and have effect:—

- (1) In this section reference to an agreed plan identified by a letter or number shall be construed as a reference to a plan marked by that letter or number signed in duplicate by Francis John Forty on behalf of the Corporation and by Sir David H. Burnett on behalf of the proprietors and the wharf company, of which one has been deposited at the offices of the engineer and the other at the registered office of the proprietors:
- (2) The Corporation shall not under the powers of this Act acquire compulsorily the whole or any part of or any easement or rights in or over—

(a) the building known as No. 1 London Bridge and the wharf known as Fenning's Wharf which are

situated on the land in the metropolitan borough of Bermondsey numbered 28, 29 and 30 on the deposited plan except so much of the forecourt of No. 1 London Bridge as is shown coloured red on the agreed plan marked A1;

(b) the building known as Hibernia Chambers, No. 2 London Bridge, the wharf and warehouses known as Hibernia Wharf and the campshed immediately fronting thereon which are situated on the land in the metropolitan borough of Southwark numbered 1 and 3 on the deposited plan except so much of the forecourt of that building and of the external stairways and passages connected therewith as is shown coloured red on the agreed plan marked F;

(c) the vaults of the wharf company situate under part of the land in the metropolitan borough of Bermondsey numbered 2 and 3 on the deposited plan, and the land in the metropolitan borough of Southwark numbered 5 and 6 on that plan:

- (3) The Corporation shall not under the powers of this Act acquire compulsorily the whole or any part of the private thoroughfare known as Montague Close situate on the land in the metropolitan borough of Southwark numbered 4 on the deposited plan but may acquire compulsorily such easements and rights therein as they require for the purpose of the construction of the improvements:
- (4) In the construction of so much of the improvements as may be situated upon, across, under or over property of the proprietors or the wharf company the Corporation shall not without the consent of the proprietors or the wharf company (as the case may be), which consent shall not be unreasonably withheld, deviate laterally from the line of those works shown on the deposited plan:
- (5) The Corporation shall not exercise the powers of section 30 (Power to stop up ways temporarily) of this Act in relation to the said private thoroughfare known as Montague Close, in the metropolitan borough of Southwark, so as to close the carriageway thereof to traffic on any day other than a Sunday:
- (6) The Corporation shall not under the powers of this Act obstruct the river or road access to, or egress from, the wharf premises known as Fenning's Wharf and Hibernia Wharf without the consent in writing of the wharf company, such consent not to be unreasonably withheld:

PART IV
—cont.

- (7) Before commencing to construct any part of the improvements which may affect or prevent the use of the existing dolphin, which is situated on the west side of London Bridge adjoining the campshed fronting on the bridge stairs at the southern end of the bridge, the Corporation shall, to the reasonable satisfaction of the wharf company, construct a new dolphin of dimensions and to a standard no greater or better than those of the existing dolphin in such position as may reasonably be specified by the wharf company:
- (8) If for the purpose of constructing the improvements it is reasonably necessary for the Corporation so to interfere with the existing moorings, which pass under London Bridge and are used for the mooring of vessels at Fenning's Wharf, as to prevent their use in reasonably convenient manner, the Corporation shall, before so interfering with such moorings, construct and lay or place other moorings in substitution therefor of such type and to such standard, being a type and standard similar to that of the existing moorings, and in such position, as may be approved by the wharf company, such approval not to be unreasonably withheld:
- (9) The Corporation shall bear and pay to the wharf company the reasonable cost of any alterations to any existing moorings which may be rendered reasonably necessary by reason of the execution of any works in the river under the powers of this Act:
- (10) (a) In this paragraph "the arches" means the arches occupied by the wharf company shown coloured red on the agreed plans marked G and H;
- (b) The Corporation shall take all such steps as may be reasonably practicable to prevent the percolation of water into the arches being occasioned by the construction of the improvements and shall make compensation to the wharf company for any damage caused to the wharf company by such percolation occasioned during the construction of the improvements or within a period of twelve months from the completion thereof, including the reasonable cost incurred by the wharf company in any alterations of the arches which may be rendered necessary thereby;
- (c) The wharf company shall within twelve months from the passing of this Act furnish to the Corporation for their reasonable approval a schedule of condition of the arches, and the Corporation shall not in the exercise of the powers conferred by this Act commence to

construct any works which may affect the arches until that schedule has been approved by the Corporation or settled by arbitration;

PART IV
—cont.

(d) Nothing in this paragraph shall prejudice or affect the right of the wharf company to claim compensation under the Lands Clauses Acts for any land taken or injuriously affected but any work done or compensation paid under this section shall be taken into account in assessing any compensation payable under those Acts:

(11) The wharf company shall be entitled to claim compensation for injurious affection in respect of their interest in the campshed situate to the west of London Bridge fronting on Hibernia Wharf as if it were an interest in land:

(12) Any difference arising between the Corporation and the proprietors or the wharf company under this section (other than a difference as to the meaning or construction of this section) shall be settled by arbitration.

42. For the protection of the Wardens and Commonalty of the Mistery of Fishmongers of the City of London (hereinafter referred to as "the Fishmongers Company") the following provisions shall, unless otherwise agreed in writing between the Corporation and the Fishmongers Company, apply and have effect:—

(1) In this section—

"class I works" means so much of the widening of London Bridge (Work No. 1) authorised by this Act as will—

(i) within ten feet from Fishmongers' Hall extend to a lower level than 10.43 feet above ordnance datum (Newlyn); or

(ii) within twenty feet from Fishmongers' Hall meet any plane drawn downwards in the direction of the work at an angle of forty-five degrees to the horizontal from the lines formed by the intersection of the planes of the external faces of Fishmongers' Hall with the plane of the level of 10.43 feet above ordnance datum as aforesaid;

"class II works" means so much of the said Work No. 1, not being class I works, as will be constructed within one hundred feet of Fishmongers' Hall;

"authorised works" means class I works and class II works or either such works as the case may be;

PART IV
—cont.

“Fishmongers’ Hall” means the buildings within the curtilage of the property known as Fishmongers’ Hall and shown coloured pink on the plan signed in duplicate by Sir Edward Bailey Gillett on behalf of the Fishmongers Company and by Francis John Forty on behalf of the Corporation, of which one copy has been deposited in the office of the engineer and one copy has been deposited in the office of the clerk to the Fishmongers Company:

(2) Notwithstanding anything in section 20 (Limits of deviation) of this Act, the Corporation shall not construct the improvements in such a manner that any part thereof when completed is nearer to Fishmongers’ Hall than four feet:

(3) The Corporation shall, before commencing the construction of class I works, furnish to the Fishmongers Company sufficient plans, sections and particulars thereof (including particulars as to the method of safeguarding Fishmongers’ Hall during the construction of the works), for the approval of the Fishmongers Company, which approval shall not be unreasonably withheld, and shall not construct the class I works except in accordance with such plans, sections and particulars as approved by the Fishmongers Company or, in case of difference, settled by arbitration:

Provided that if, within twenty-eight days after the plans, sections and particulars have been furnished to the Fishmongers Company, the Fishmongers Company shall not have intimated their approval or disapproval thereof, they shall be deemed to have approved them:

(4) The Corporation shall, before commencing the construction of class II works, furnish to the Fishmongers Company plans, sections and particulars thereof (including particulars as to the method of safeguarding Fishmongers’ Hall during the construction of the works) and shall consult with the Fishmongers Company before commencing the construction of those works:

(5) The Corporation shall give the Fishmongers Company twenty-eight days’ notice of their intention to commence the construction of the authorised works:

(6) The construction of the authorised works shall be carried out to the reasonable satisfaction of the Fishmongers Company and in such manner and with such reasonable dispatch as to cause as little damage to Fishmongers’ Hall and as little interference with the occupation and use thereof as may be, and if any such damage or

interference shall be caused by the construction of the authorised works the Corporation shall, notwithstanding any such approval or consultation as aforesaid, make good such damage and pay to the Fishmongers Company reasonable compensation for any loss which they may sustain by reason of any such damage or interference:

- (7) Notwithstanding anything contained in the Lands Clauses Acts the Fishmongers Company may make separate claims for compensation for the value of their interest in any land taken by the Corporation under the powers conferred by this Act and for injurious affection of any land of the Fishmongers Company not so taken, and the Fishmongers Company may make claims for compensation from time to time for injurious affection by reason of any settlement or additional noise or vibration caused by the bringing of the roadway over London Bridge and the traffic thereon nearer to Fishmongers' Hall in consequence of the construction of the widening of London Bridge (Work No. 1) authorised by this Act, but any such claim shall be restricted to injurious affection having regard to the purposes for which Fishmongers' Hall is used at the passing of this Act and to the noise and vibration caused by the traffic over London Bridge before the commencement of the construction of the said widening of London Bridge and the Fishmongers Company shall not be entitled to claim compensation more than once in respect of the same injury:
- (8) The Corporation shall pay to the Fishmongers Company the reasonable costs and expenses incurred by them in connection with the approval of, or consultation with respect to, plans, sections and particulars of the authorised works (as the case may be) in accordance with the provisions of this section:
- (9) Any difference arising between the Corporation and the Fishmongers Company under this section (other than a difference as to the meaning or construction of this section) shall be settled by arbitration.

43. For the protection of the port authority and river users the following provisions shall, unless otherwise agreed in writing between the Corporation and the port authority, apply and have effect:—

For
protection of
port authority
and river
users.

- (1) In this section—

“outfall” means an outfall to the river of any drain, sewer, channel or watercourse within the limits of deviation;

PART IV
—cont.

“ the river ” means the river Thames and, where the context so admits, includes the bed, banks and fore-shore thereof within the jurisdiction of the port authority;

“ river works ” means—

(a) any works executed under the powers of this Act in, on, over or under the river; and

(b) the removal, alteration, diversion or stopping up under the powers of this Act of any outfall situate in, on, over or under the river:

(2) In the construction of the widening of London Bridge (Work No. 1) authorised by this Act the Corporation shall comply with the following requirements, namely:—

(a) only one pier of London Bridge shall be extended at any one time and before commencing any work for the purpose of the extension of another pier the Corporation shall comply with paragraph (4) of this section as to the removal of temporary works;

(b) the Corporation shall not at any one time close completely to navigation more than one of the three centre arches of London Bridge and where they close completely to navigation one such arch they shall not at any time place any cofferdam or other works or conveniences in, or interfere with or block or obstruct, more than one of the adjoining arches and then in that adjoining arch not beyond a distance of fifteen feet measured at half tide from the face of the pier in that adjoining arch:

(3) (a) Before commencing to execute any river works the Corporation shall submit to the port authority plans, sections and particulars of those river works for their reasonable approval (which approval may be given subject to such reasonable requirements as to the construction of works for the purposes of protecting navigation of the river as the port authority may make) and the river works shall be deemed to be works upon the bed or shores of the river commenced or executed under the direction or with the licence, consent or permission of the port authority within the meaning of section 244 (Certain works to be approved by the Board of Trade) of the Port of London (Consolidation) Act, 1920;

(b) If the port authority do not, within twenty-eight days after the submission to them of any plans, sections or particulars pursuant to this paragraph, intimate to the Corporation their approval or disapproval thereof, they shall be deemed to have approved the same:

- (4) (a) All river works shall when commenced be proceeded with and completed as soon as practicable and the Corporation shall upon completion of any part of any permanent river works remove any temporary works and materials for temporary works which may have been erected or placed in, on, over or under the river for the purpose of, or in connection with, that part of those works;
- (b) The river works shall be constructed and maintained and, in the case of temporary works, removed, to the reasonable satisfaction of the chief engineer of the port authority for the time being and, in the construction and maintenance thereof, traffic on the river shall not be interfered with more than may be reasonably necessary:
- (5) The Corporation shall allow an authorised representative of the port authority to inspect and survey all or any of the river works and any works constructed in connection therewith on lands immediately adjacent to the river by the Corporation under the powers of this Act while in course of construction or maintenance and shall give all reasonable facilities for so doing:
- (6) (a) The Corporation shall not (except in so far as may be necessary in the construction of the improvements) deposit in, or take from, the river (excluding any part thereof which may be acquired by the Corporation under this Act) any gravel, soil or other material without the previous consent of the port authority signified in writing under the hand of the secretary of the port authority for the time being;
- (b) Any gravel, soil or other material necessarily removed from the river by the Corporation during the execution of the river works shall not be allowed to fall into or to be washed into the river:
- (7) (a) Any old pile stumps which may at any time become exposed in consequence of, and during the execution of, the river works (other than any pile stumps situate on the site of any permanent works) shall be drawn from the river to the satisfaction of the port authority and not cut off;
- (b) If the Corporation fail to draw from the river any such old pile stump after receipt of a notice in writing from the port authority, the port authority may themselves carry out such removal, charging the Corporation with the expense of so doing, and the Corporation shall repay to the port authority all expenses so incurred:

PART IV
—cont.

(8) The port authority shall not be liable for any damage or injury to any temporary work in, on, over or under the river authorised by this Act resulting from the dredging operations of the port authority or the carrying out by them in the execution of their statutory powers and duties of any operations in the river or works for the improvement or maintenance thereof provided that they take reasonable care to avoid any such damage or injury:

(9) If within the period of five years from the opening of the widening of London Bridge (Work No. 1) authorised by this Act for public traffic it shall be shown that any river work—

(a) has caused any accumulation of mud or silt; or

(b) has caused such excessive scouring of the bed of the river as makes it necessary, in the opinion of the port authority, in the interests of river users and the protection of works in the river, to deposit material in the portion of the river so scoured;

the Corporation shall bear and pay to the port authority any additional dredging costs at any time reasonably so incurred as a consequence of any such accumulation of mud or silt or (as the case may be) any expenses at any time reasonably incurred by them in obtaining and depositing material made necessary by such scouring:

(10) The owners and masters of vessels shall not be liable to make good any damage which may be caused to any temporary works or plant placed by the Corporation in the river under the powers of this Act except such damage as may arise from the wilful act or default of such owners or masters or their servants or agents:

(11) Any compensation or consideration payable to the port authority by the Corporation in respect of lands held, taken or used and of all permanent or temporary works placed in the river under the powers of this Act shall be assessed in accordance with the provisions of section 254 (Consideration for licence to be previously approved) of the Port of London (Consolidation) Act, 1920:

(12) The Corporation shall bear and pay to the port authority—

(a) the reasonable cost of any alterations to any existing moorings which in the opinion of the port authority may be rendered necessary or desirable by reason of the execution of any works in the river under the powers of this Act; and

(b) the reasonable cost incurred by the port authority in regulating river traffic through London Bridge which becomes necessary in the opinion of the port authority in consequence of and during the execution of any river work:

(13) Except as provided by this Act nothing in this Act shall prejudice or derogate from the estates, rights, interests, privileges, liberties or franchises of the port authority, or alter or diminish any power, authority or jurisdiction vested in the port authority at the commencement of this Act, by virtue of the Port of London Acts, 1920 to 1961:

(14) Nothing in this Act shall authorise the Corporation to discharge or allow to escape either directly or indirectly into the river or its tributaries any gravel, soil or other solid substance or matter in suspension or otherwise or shall affect the operation of sections 226 to 239 of the Port of London (Consolidation) Act, 1920 (which relate to pollution):

Provided that this paragraph shall not apply in relation to the alteration or diversion of an outfall by the Corporation under the powers of this Act:

(15) Any difference arising between the Corporation and the port authority under this section (other than a difference as to the meaning or construction of this section) shall be determined by an arbitrator to be agreed between the parties or, failing agreement, to be appointed on the application of either party (after notice in writing to the other) by the Minister.

44. For the protection of the British Transport Commission For protection (in this section referred to as "the commission") the following of British provisions shall, unless otherwise agreed in writing between the Transport Corporation and the commission, apply and have effect:— Commission.

(1) In this section—

"underground railways" means so much of the Northern Line railway to the east, and so much of the twin disused railway tunnels immediately to the west, of London Bridge, and so much of the lands, works or premises held by the commission for the purposes of that railway or those tunnels, as is within the limits of deviation or within one hundred feet of any of the improvements;

"surface railways" means so much of the railways of the commission, and of the lands, works or premises

PART IV
—cont.

held by the commission for the purposes of those railways (not being underground railways) as is within the limits of deviation or within one hundred feet of any of the improvements;

“ railway property ” means the underground railways, the surface railways and any other lands, works or premises of the commission within the limits of deviation or within one hundred feet of any of the improvements, or any of those things, as the case may be;

“ class A works ” means so much of any of the improvements as may be situated within fifty feet measured in any direction from the underground railways;

“ class B works ” means so much of any of the improvements, not being class A works, as may be situated upon, across, under or over railway property or in such position that the construction thereof may in any way affect railway property;

“ authorised works ” means class A works and class B works or either such works as the case may be;

“ construction ” includes renewal and, for the purposes of sub-paragraphs (a), (b) and (c) of paragraph (11) and paragraph (13) of this section in relation to any authorised works, and, for the purposes of paragraphs (3), (5) and (6) of this section in relation to class A works, includes works of maintenance or repair involving disturbance of any structure or the soil or subsoil;

“ commission’s engineer ” means an engineer to be appointed by the commission;

“ plans ” includes sections, drawings and particulars:

- (2) The Corporation shall not under the powers of this Act acquire compulsorily any railway property but they may, in accordance with the provisions of section 9 (Power to acquire easements only) of this Act, acquire compulsorily such easements and rights in any railway property delineated on the deposited plan as they may reasonably require for the purposes of the authorised works:
- (3) The Corporation shall, before commencing the construction of any of the authorised works, furnish to the commission sufficient plans thereof for the reasonable approval of the commission’s engineer and shall not commence the construction thereof until the plans have

been approved by the commission's engineer or, in case of difference between the engineer and the commission's engineer, settled by arbitration:

Provided that if within twenty-eight days after the plans have been furnished to the commission the commission's engineer shall not have intimated his approval or disapproval thereof, and, in case of disapproval, the grounds thereof, he shall be deemed to have approved them:

- (4) If within twenty-eight days after plans for the construction of the authorised works have been furnished to the commission, the commission shall give notice to the Corporation, and, in the case of class B works, it is agreed or determined, that in consequence of the nature of the authorised works it is necessary that the commission should themselves construct any part of the authorised works, then, if the Corporation desire that part of the works to be constructed, the commission shall construct it with all reasonable dispatch on behalf of, and to the reasonable satisfaction of, the Corporation in accordance with the plans approved or deemed to be approved or settled as aforesaid:

Provided that in the event of the commission not proceeding with or completing the construction of such part of the authorised works with reasonable dispatch and to the reasonable satisfaction of the Corporation, the Corporation may, after giving not less than twenty-eight day's notice to the commission, themselves proceed with or complete the construction of that part of those works:

- (5) Upon signifying his approval or disapproval of the plans the commission's engineer may specify any protective works, whether temporary or permanent, which in his opinion should be carried out before the commencement of the construction of any part of the authorised works to ensure the safety or stability of railway property and such protective works as may in the case of class A works be so specified and as may in the case of class B works be agreed or determined to be reasonably necessary for those purposes shall be constructed by the commission and, if and so long as the commission proceed with the construction of such protective works with all reasonable dispatch, the Corporation shall not commence the construction of that part of those works until the commission's engineer shall have notified the Corporation that the protective works have been completed:

PART IV
—cont.

- (6) The Corporation shall, except in cases of emergency (when they shall give such notice as is practicable), give to the commission's engineer twenty-eight days' notice of their intention to commence the construction of any of the authorised works:
- (7) The construction of the authorised works (or so much thereof as shall be carried out by the Corporation, as the case may be) shall, when commenced, be carried out with all reasonable dispatch in accordance with the plans approved, or deemed to have been approved, or settled as aforesaid and under the supervision (if given) of the commission's engineer and—
- (i) in the case of class A works, to the satisfaction of the commission's engineer and in such manner as not to cause any damage to, or interference with the safe user of, the underground railways; and
 - (ii) in the case of class B works, to the reasonable satisfaction of the commission's engineer and in such manner as to cause as little damage as may be to railway property and as little interference as may be with the safe user of the surface railways or the traffic thereon;
- and if any damage to railway property or any such interference shall be caused or take place the Corporation shall, notwithstanding any such approval as aforesaid, make good such damage and shall pay to the commission the reasonable costs and expenses to which they may be put and reasonable compensation for any loss which they may sustain by reason of any such damage or interference:
- Provided that nothing in this paragraph shall impose any liability on the Corporation with respect to any damage, costs, expenses and loss which may be attributable to the act, neglect or default of the commission or of any person in their employ or of their contractors or agents:
- (8) The Corporation shall at all times afford reasonable facilities to the commission's engineer for access to the authorised works during their construction and shall supply him with all such information as he may reasonably require with regard to the authorised works or the method of construction thereof:
- (9) The commission shall at all times afford reasonable facilities to the Corporation or the engineer for access to any works carried out by the commission under this section and shall supply the Corporation with such information as they may reasonably require with regard to such works or the method of construction thereof:

- (10) If any alterations or additions, either permanent or temporary, to railway property shall be reasonably necessary during the construction of the authorised works, or during a period of twelve months after the completion thereof, in consequence of the construction of the authorised works by the Corporation, such alterations and additions may be effected by the commission after not less than twenty-eight days' notice (or, in case of emergency, such notice as is practicable) has been given to the Corporation, and the Corporation shall repay to the commission the reasonable cost thereof including, in respect of permanent alterations and additions, a capitalised sum representing the increased or additional cost of maintaining, working and, when necessary, renewing railway property in consequence of any such alterations and additions:

Provided that if the cost of maintaining, working or renewing railway property is reduced in consequence of any such alterations and additions a capitalised sum representing such saving may be set off against any sum payable by the Corporation to the commission under this section:

- (11) The Corporation shall repay to the commission all costs, charges and expenses reasonably incurred by the commission—

(a) in respect of the employment of any inspectors, signalmen, watchmen and other persons whom it shall be reasonably necessary to appoint for inspecting, watching, lighting and signalling railway property for preventing so far as may be interference, obstruction, danger or accident arising from the construction of the authorised works;

(b) in respect of any special traffic working resulting from any speed restrictions or substitution or diversion of traffic services which are imposed or made in consequence of the construction of the authorised works;

(c) in respect of any additional temporary lighting of railway property in the vicinity of the authorised works being lighting made reasonably necessary by reason of the construction of those works;

(d) in constructing any part of the authorised works on behalf of the Corporation in accordance with the provisions of paragraph (4) of this section, or in constructing any protective works under the provisions of paragraph (5) of this section which in the case of class A works are specified or in the case of class B

PART IV
—cont.

works are agreed or determined to be reasonably necessary for the purposes mentioned in that paragraph, including in respect of any permanent protective works, a capitalised sum representing the cost of maintaining and renewing such works:

Provided that if the cost of maintaining, working or renewing any railway property is reduced in consequence of the construction of any protective works under the provisions of paragraph (5) of this section, a capitalised sum representing such saving may be set off against any sum payable by the Corporation to the commission under this section:

- (12) All temporary structures, erections, works, apparatus and appliances erected or placed by the Corporation under the powers of section 25 (Power to make subsidiary works affecting railways) of this Act upon, over or under any railway of the commission shall, as soon as reasonably practicable, be removed by the Corporation to the reasonable satisfaction of the commission's engineer and in such a way as to cause as little damage to railway property and as little interference with, or interruption to, the traffic on the railways of the commission as may be, and if any damage to railway property or any such interference or interruption shall be caused by failure to remove any such temporary structures, erections, works, apparatus or appliances, the Corporation shall make good such damage and pay to the commission the reasonable costs and expenses to which they may be put and reasonable compensation for any loss which they may sustain by reason of such damage, interference or interruption:

- (13) The Corporation shall be responsible for and make good to the commission all costs, charges, damages and expenses not otherwise provided for in this section which may be occasioned to, or reasonably incurred by, the commission—

(a) in respect of damage to railway property by reason of the construction of the authorised works or the failure thereof; or

(b) by reason of any act or omission of the Corporation or of any persons in their employ or of their contractors or others whilst engaged upon the construction of the authorised works;

and the Corporation shall effectively indemnify and hold harmless the commission from and against all claims and demands arising out of, or in connection

with, the construction of the authorised works, or any such act or omission as aforesaid, and the fact that any work or thing may have been done by the commission on behalf of the Corporation or in accordance with plans approved by the commission's engineer, or in accordance with any requirement of the commission's engineer, or under his supervision, shall not (if it was done without negligence on the part of the commission or of any person in their employ or of their contractors or agents) excuse the Corporation from any liability under the provisions of this section:

Provided that the commission shall give to the Corporation reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Corporation:

(14) If in connection with the construction of the improvements it shall become necessary temporarily to prohibit, restrict the use of, or otherwise interfere with bus services of the commission over London Bridge then before any such prohibition, restriction or interference takes place, the Corporation shall consult with the commission with a view to ensuring that the said services are interfered with as little as may be:

(15) Any difference arising between the Corporation or the engineer and the commission or the commission's engineer under this section (other than a difference as to the meaning or construction of this section) shall be settled by arbitration.

45. For the protection of the county council the following provisions shall, unless otherwise agreed in writing between the Corporation and the county council, apply and have effect:—

For protection
of London
County
Council.

(1) In this section unless the subject or context otherwise requires—

“county council's engineer” means the chief engineer of the county council or other officer duly authorised to exercise the functions of such chief engineer;

“sewer” means the Battle Bridge Sewer and other the existing sewers of the county council or any such sewers;

“specified works” means so much of the street and bridge widening (Work No. 2) and the elevated footway and footbridges (Work No. 3) as will or may pass over, under, or by the side of, or interfere with, any sewer:

PART IV
—cont.

- (2) (a) The Corporation shall not under the powers of this Act acquire compulsorily the two emergency water-pump platforms, and the machinery thereon or connected therewith, belonging to the county council, being the works on the lands numbered on the deposited plan 6 in the city and 2 in the metropolitan borough of Southwark (which platforms and machinery are in this section referred to as "the apparatus") but, subject to the provisions of sub-paragraphs (b) and (c) of this paragraph, may remove all or part of the apparatus and if they do so shall reinstate it in such other positions and in such manner in all respects as may reasonably be required by the county council;
- (b) Except with the consent of the county council, the Corporation shall not remove more than one of the said emergency water-pump platforms and the machinery thereon or connected therewith at any one time and before removing the other of the said platforms or any machinery thereon or connected therewith they shall reinstate the first-mentioned apparatus in accordance with the provisions of this paragraph;
- (c) The Corporation shall bear the cost of the reinstatement of the apparatus in positions in relation to London Bridge as widened under the powers of this Act as nearly as may be the same as the positions of the apparatus in relation to London Bridge as now existing and if the Corporation are required to reinstate the apparatus or any of it in any other position or positions any additional expenditure reasonably incurred by them in so doing shall be repaid to them by the county council;
- (3) During the construction of the widening of London Bridge (Work No. 1) authorised by this Act and at all times after the completion thereof the Corporation shall provide and maintain to such extent as may be necessary and to the reasonable satisfaction of the county council means of access to the apparatus:
- (4) The Corporation shall not commence the construction of any of the specified works until they shall have given to the county council twenty-eight days' previous notice in writing of their intention to commence the same by leaving such notice at the principal office of the county council with plans as described in paragraph (11) of this section (in this section referred to as "the said plans") and until the county council shall have signified their approval of the same (unless the county council do not signify their approval, disapproval or other directions within twenty-eight days after service of the said plans):

- (5) The Corporation shall comply with and conform to all reasonable orders, directions and regulations of the county council in the execution of the specified works and shall provide new, altered or substituted works in such manner as the county council shall reasonably require for the proper protection of, and for preventing injury or impediment to, any sewer by reason of the specified works and shall save harmless the county council against all expenses to be occasioned thereby:
- (6) All such new, altered or substituted works shall, where reasonably so required by the county council, be done by or under the direction, superintendence and control of the county council's engineer at the cost in all respects of the Corporation and all costs, charges and expenses which the county council may reasonably incur by reason of such works, whether in the execution of works, the preparation or examination of plans or designs, superintendence or otherwise, shall be paid to the county council by the Corporation:
- (7) When any such new, altered or substituted works or any protective works connected therewith shall be completed by, or at the cost of, the Corporation under the provisions of this section the same shall thereafter be as fully and completely under the direction, jurisdiction and control of the county council as any sewers now or hereafter may be:
- (8) Nothing in this Act shall extend to prejudice, diminish, alter or take away any of the rights, powers or authorities vested or to be vested in the county council in relation to sewers but all such rights, powers and authorities shall be as valid and effectual as if this Act had not been passed:
- (9) The county council may require the Corporation, in constructing the specified works, to make any reasonable deviation within the limits of deviation of such works from the line or levels shown upon the said plans for the purpose of avoiding injury or risk of injury to the sewers of the county council and the Corporation shall in constructing such works deviate from the line or level thereof in accordance with any such reasonable requirement of the county council:
- (10) The county council's engineer may from time to time enter upon and inspect any works of the Corporation constructed under this Act under, or in the neighbourhood of, any street or part of a street in or under which there are any sewers and any works which under the

PART IV
—cont.

provisions of this section are required to be constructed in accordance with plans, sections and specifications approved by the county council:

- (11) The plans to be submitted to the county council for the purposes of this section shall be detailed plans, drawings, sections and specifications which shall describe the exact position and manner in which, and the level at which, the said works are proposed to be constructed and shall accurately describe the position of all sewers of the county council within the limits of deviation of the specified works (for which purpose the county council shall allow the Corporation access to plans in their possession and to any of their sewers in order to enable the Corporation to obtain reliable information) and shall comprise detailed drawings of every alteration which the Corporation may propose to make in any such sewer:
- (12) The county council may require such modifications to be made in the said plans as may be reasonably necessary to secure the London main drainage system against interference or risk of damage and to provide and secure a proper and convenient means of access to the said sewers:
- (13) The Corporation shall be liable to make good all injury or damage caused by, or resulting from, the construction of the specified works to any sewers or to any drains or works vested in the county council:
- (14) The approval by the county council of any plans, or the superintendence by them of any work, under the provisions of this section shall not exonerate the Corporation from any liability or affect any claim for damages under this section or otherwise:
- (15) If the Corporation in the construction of any of the specified works alter, damage, or in any way interfere with, any sewer of the county council the Corporation shall—
 - (a) give to the county council full, free and uninterrupted access at all times to any new, altered or substituted sewer which may be necessary in consequence of the construction of the specified works and every reasonable facility for the inspection, maintenance, alteration and repair thereof; and
 - (b) from time to time pay to the county council any additional cost to which the county council may reasonably be put in the maintenance, management or renewal of any such new, altered or substituted sewer:

Provided that if the cost of maintaining or managing any sewer is reduced, or the time for renewal of any sewer or part thereof is deferred, in consequence of the provision of any such new, altered or substituted sewer, a capitalised sum representing the saving in cost obtained thereby may be set off against any sum payable by the Corporation to the county council under this section:

- (16) Any difference arising between the Corporation or the engineer and the county council or the county council's engineer under paragraphs (2) or (3) of this section (other than a difference as to the meaning or construction thereof) shall be settled by arbitration.

46. For the protection of certain statutory undertakers, the following provisions shall, unless otherwise agreed in writing between the Corporation and the statutory undertakers concerned, apply and have effect:—

- (1) In this section unless the subject or context otherwise requires—

“ Act of 1950 ” means the Public Utilities Street Works Act, 1950;

“ apparatus ” means—

(a) electric lines and works (as respectively defined in the Electric Lighting Act, 1882) belonging to, or maintained by, the Central Electricity Generating Board or the London Electricity Board;

(b) mains, pipes, valves, syphons, stopcocks or other works or apparatus belonging to, or maintained by, the North Thames Gas Board or the South Eastern Gas Board; or

(c) mains, pipes, valves, hydrants, stopcocks or other works or apparatus belonging to, or maintained by, the Metropolitan Water Board;

and includes any works constructed for the lodging therein of apparatus;

“ in ” in a context referring to apparatus includes under, over, across, along or upon;

“ position ” includes depth;

“ statutory undertakers ” means—

the Central Electricity Generating Board;
the London Electricity Board;
the North Thames Gas Board;
the South Eastern Gas Board; and
the Metropolitan Water Board;

PART IV
—cont.

or any of them, and in relation to any apparatus or property means the statutory undertakers to whom the apparatus or property belongs, or by whom the apparatus is maintained, and in relation to the supply of electricity, gas or water means the statutory undertakers by whom the supply is provided:

- (2) Notwithstanding anything in this Act or shown on the deposited plan, or contained in the deposited book of reference, the Corporation shall not, under the powers of this Act, acquire any apparatus compulsorily:
- (3) Subject to the provisions of this section, the provisions of the code in Part II of the Act of 1950 shall apply and have effect in relation to works for the construction or maintenance of the improvements, or otherwise for the purposes of, or in connection with the improvements, as if those works were included in paragraph (a) of subsection (1) of section 21 of the Act of 1950 and were executed by the council of a borough for road purposes within the meaning of that Act and, without prejudice to the powers of the Corporation to require the execution of undertakers' works within the meaning of that Act, paragraph (e) of subsection (1) of section 22 (General power to make subsidiary works) of this Act shall not apply to any apparatus to which the said section 21 of the Act of 1950 applies:

Provided that for the purposes of such application the said provisions shall have effect—

(a) so as to impose on the Corporation an obligation, in the case of works for the construction of the improvements, to give notice to the statutory undertakers concerned under paragraph 2 of the Fourth Schedule to the Act of 1950 before commencing the works together with plans, sections and particulars of the works to be commenced; and

(b) as if accordingly, in the case of works for the construction of the improvements, the words in parenthesis in paragraph 3 of the said schedule relating to a road alteration were omitted:

- (4) Where a street in which any apparatus is situated has been permanently stopped up by the Corporation under the powers of the said section 22 the statutory undertakers shall, notwithstanding such stopping up, continue to have the same powers and rights in respect of the apparatus remaining in the land which by reason of the stopping up has ceased to be a street as they would

have if it had remained a street or the statutory undertakers may and, if reasonably required by the Corporation, shall—

(a) remove the apparatus and relay or replace it in such other position as the statutory undertakers may reasonably determine; or

(b) provide and lay or place in such other position as aforesaid other apparatus in place of the existing apparatus:

- (5) The Corporation shall repay to the statutory undertakers the reasonable expenses incurred by the statutory undertakers in, or in connection with, the carrying out of such works as are referred to in sub-paragraphs (a) and (b) of the last foregoing paragraph (whether or not the Corporation have required those works to be carried out), including expenses so incurred in cutting off any apparatus from any other apparatus and in doing any work rendered necessary in consequence of carrying out the said works:

Provided that subsections (3) and (4) of section 23 of the Act of 1950 (which impose limitations on undertakers' rights to payment) shall, so far as applicable, extend and apply to any payment to be made by the Corporation under this paragraph as if the works in respect of which the payment is to be made were such undertakers' works as are referred to in the said subsection (3) and as if in that subsection, for the words "specified as so necessary in a specification of the works settled under Part I of the Fourth Schedule to this Act," there were substituted the words "agreed or settled by arbitration under section 46 (For protection of certain statutory undertakers) of the London Bridge Improvements Act, 1962":

- (6) In exercising the powers of the said section 22 the Corporation shall cause as little inconvenience in relation to access by statutory undertakers to apparatus as the circumstances of the case will admit:
- (7) Notwithstanding anything in section 27 (Power to pump water and use sewers, etc., for removing water) of this Act no use shall in the construction of the improvements be made by the Corporation of pumping or other like modes of removing water except where reasonably necessary or in the case of emergency or unforeseen accident or for the purpose of removing rainwater or other trifling amounts of water, and the provisions of section 26 of the Act of 1950 (which deals with undertakers' works which are likely to affect other undertakers'

PART IV
—cont.

apparatus) shall apply to and in relation to the laying down, taking up or altering of conduits, pipes or other works under the said section 27 as if executed for purposes other than road purposes:

- (8) The temporary stopping up or diversion of the whole or any part of the carriageway or footway of any street, or part of a street, under the powers of section 30 (Power to stop up ways temporarily) of this Act shall not prejudice or affect any right of the statutory undertakers—

(a) to maintain, operate, inspect, repair, renew or remove any apparatus which at the time of the stopping up or diversion is in the carriageway, footway or part thereof as the case may be; or

(b) for the purpose of such maintenance, operation, inspection, repair, renewal or removal, to enter upon, break open or carry out works in that carriageway, footway or part thereof as the case may be:

- (9) The Corporation shall, so far as is reasonably practicable, so exercise the powers conferred by section 34 (Power to prevent access to or from streets) of this Act as not to obstruct or render less convenient the access to any apparatus:

- (10) If by reason or in consequence of the execution by the Corporation of the improvements any damage to any apparatus (other than apparatus the repair of which is not reasonably necessary in view of its intended removal or abandonment) or property of the statutory undertakers, or any interruption in the supply of electricity, gas or water by the statutory undertakers, shall be caused, the Corporation shall bear and pay the cost reasonably incurred by the statutory undertakers in making good such damage and shall—

(a) make reasonable compensation to the statutory undertakers for any loss sustained by them; and

(b) indemnify the statutory undertakers against all claims, demands, proceedings, costs, damages and expenses which may be made or taken against, or recovered from, or incurred by, the statutory undertakers;

by reason or in consequence of any such damage or interruption:

Provided that—

(i) nothing in this paragraph shall impose any liability on the Corporation with respect to any

damage or interruption which may be attributable to the act, neglect or default of the statutory undertakers or their contractors or workmen;

(ii) the statutory undertakers shall give to the Corporation reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Corporation:

- (11) The expenses of all repairs or renewals of any apparatus which may be rendered necessary by reason or in consequence of the construction of the improvements, or any subsidence resulting therefrom, shall be borne by the Corporation and paid by them to the statutory undertakers:
- (12) The Corporation shall bear and pay any costs reasonably incurred by the statutory undertakers in the reasonable employment of watchmen and inspectors during the execution, under the powers of this Act, of any work which will or may interfere with, or affect, any apparatus:
- (13) Nothing in this section shall be construed as conferring upon the statutory undertakers any right to lay or place apparatus in the elevated footway except with the consent of the Corporation:
- (14) Any difference arising between the Corporation and the statutory undertakers under this section (other than a difference as to the meaning or construction of this section) shall be settled by arbitration:
- (15) The provisions of this section shall have effect notwithstanding anything in the Act of 1950.

47.—(1) Unless otherwise agreed in writing between the Corporation and the Postmaster General, the following provisions shall have effect:—

For protection
of Postmaster
General.

- (a) Subject to the provisions of subsection (2) of this section the provisions of the code in Part II of the Public Utilities Street Works Act, 1950, shall apply and have effect in any case in which any telegraphic line belonging to, or used by, the Postmaster General to which section 21 of that Act applies is affected by works for the construction or maintenance of the improvements, or otherwise for the purposes of, or in connection with, the improvements, as if those works were included in paragraph (a) of subsection (1) of the said section 21 and were executed by the council of a borough for road purposes within the meaning of that Act:

PART IV
—cont.

Provided that for the purposes of such application the said provisions shall have effect—

- (i) so as to impose on the Corporation an obligation, in the case of all works for the construction of the improvements, to deliver with the notice to be given to the Postmaster General under paragraph 2 of the Fourth Schedule to that Act before commencing the works, plans, sections and particulars of the works to be commenced; and
 - (ii) as if accordingly, in the case of works for the construction of the improvements, the words in parenthesis in paragraph 3 of the said schedule relating to a road alteration were omitted;
- (b) The Corporation shall not alter any telegraphic line belonging to, or used by, the Postmaster General, not being a telegraphic line to which section 21 of the said Act of 1950 applies, except in accordance with, and subject to, the provisions of paragraphs (1) to (8) of section 7 of the Telegraph Act, 1878;
- (c) For the purposes of paragraph (b) of this subsection, the expression “alter” has the same meaning as in the Telegraph Act, 1878.

(2) Where in pursuance of the powers conferred by subsection (1) of section 22 (General power to make subsidiary works) of this Act, any street, or part of a street, is diverted or stopped up, the following provisions of this subsection shall, unless otherwise agreed in writing between the Corporation and the Postmaster General, have effect in relation to so much of any telegraphic line belonging to, or used by, the Postmaster General as is under, in, upon, over, along or across any land which by reason of the diversion or stopping up ceases to be a street (in this subsection referred to as “the affected line”), that is to say:—

- (a) the power of the Postmaster General to remove the affected line shall be exercisable notwithstanding the diversion or stopping up of the street, or part of the street, so however that the said power shall not be exercisable as respects the whole or any part of the affected line after the expiration of a period of three months from the date of the sending of the notice referred to in subsection (3) of this section unless, before the expiration of that period, the Postmaster General has given notice to the Corporation of his intention to remove the affected line or that part thereof (as the case may be);
- (b) the Postmaster General may by notice in that behalf to the Corporation abandon the affected line or any part thereof and shall be deemed, as respects the affected

line, or any part thereof, to have abandoned it at the expiration of the said period of three months unless before the expiration of that period, he has removed it or given notice of his intention to remove it;

- (c) the Postmaster General shall be entitled to recover from the Corporation the expense of providing in substitution for the affected line, and any telegraphic line connected therewith which is rendered useless in consequence of the removal or abandonment of the affected line, a telegraphic line in such other place as he may require;
- (d) where, under paragraph (b) of this subsection, the Postmaster General has abandoned the whole or any part of the affected line, it shall vest in the Corporation, and the provisions of the Telegraph Acts, 1863 to 1962, shall not apply in relation to it as respects anything done or omitted after the abandonment thereof.

(3) As soon as practicable after the whole or any part of a street has been diverted or stopped up in pursuance of the powers referred to in subsection (2) of this section, the Corporation shall send by post to the Postmaster General a notice informing him of the diversion or stopping up.

(4) The temporary stopping up or diversion of the whole or any part of the carriageway or footway of any street, or part of a street, under the powers conferred by subsection (1) of section 30 (Power to stop up ways temporarily) of this Act, shall not prejudice or affect any right of the Postmaster General—

- (a) to maintain, inspect, repair, renew or remove any telegraphic line belonging to, or used by, him which, at the time of the stopping up or diversion, was under, in, upon, over, along or across that carriageway or footway or part thereof, as the case may be; or
- (b) for the purpose of such maintenance, inspection, repair, renewal or removal, to enter upon, break open or carry out works in that carriageway or footway, or part thereof, as the case may be.

(5) In this section “telegraphic line” has the same meaning as in the Telegraph Act, 1878.

48. Nothing in this Act shall exempt the Corporation from any of the provisions of the Thames River (Prevention of Floods) Acts, 1879 to 1957, or diminish, alter, or in any way affect, the powers, rights, duties, responsibilities or obligations of any person or body under any of the provisions of those Acts. Saving for
Thames River
(Prevention
of Floods)
Acts.

PART IV
—cont.
Saving for
town and
country
planning.
Arbitration.

49. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act, 1947, for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

50. Where under this Act any difference (other than a difference to which the provisions of the Lands Clauses Acts apply) is to be referred to or settled by arbitration then, unless otherwise provided, such difference shall be referred to, and settled by, a single arbitrator to be agreed between the parties or, failing agreement, to be appointed on the application of either party (after notice in writing to the other) by the President of the Institution of Civil Engineers.

Costs of Act.

51. The costs, charges and expenses preliminary to, and of and incidental to, the preparing, obtaining and passing of this Act shall be paid by the Corporation out of the rents and profits of the Bridge House Estates.

Table of Statutes referred to in this Act

Short title	Session and chapter
Lands Clauses Consolidation Act, 1845 ..	8 & 9 Vict. c. 18.
Telegraph Act, 1878	41 & 42 Vict. c. 76.
Electric Lighting Act, 1882	45 & 46 Vict. c. 56.
Port of London (Consolidation) Act, 1920 ..	10 & 11 Geo. 5 c. clxxiii.
Town and Country Planning Act, 1947 ..	10 & 11 Geo. 6 c. 51.
Public Utilities Street Works Act, 1950 ..	14 Geo. 6 c. 39.
City of London (Various Powers) Act, 1954	2 & 3 Eliz. 2 c. xxvii.
Land Compensation Act, 1961	9 & 10 Eliz. 2 c. 33.

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